



Notification Waiver Determination

Mitsui – further interest in Norse Maritime

Acquisition	Mitsui & Co., Ltd. (Mitsui) applied for a notification waiver in respect of its proposed acquisition of an additional 10.075% of the share capital in Norse Maritime A/S (Norse), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	9 October 2026

Parties to the Acquisition	The acquirer, Mitsui, is a Japanese general trading company with seven operating segments: iron and steel products, mineral and metal resources, energy, machinery and infrastructure, chemicals, lifestyle and innovation and corporate development. The target, Norse, is a Danish dry bulk shipping operator active in the tramp shipping sector globally. It operates a fleet of vessels providing maritime transport services for commodities. Certain of Mitsui's connected entities also supply dry bulk vessels in this sector globally, including to Norse.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between Mitsui and Norse in the supply of tramp shipping services or dry bulk shipping services in Australia b. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.

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	The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**